Fort Bend County District Court

Cause No. 2024-CV-0033

Dylan Thomas, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 2, 2024
Plaintiff's counsel:	Carlos Fox, Carter & Smith Injury Lawyers

PARTIES

Plaintiff is Dylan Thomas, an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is the automobile laibility insurer that issued the policy under which Plaintiff seeks coverage and benefits. Defendant may be served through its registered agent for service of process in accordance with the Texas Rules of Civil Procedure.

FACTS

On June 10, 2023, Plaintiff was lawfully operating a passenger vehicle on a public roadway in Pearland, Texas. A second vehicle traveling in the opposite direction crossed into Plaintiff's lane and struck Plaintiff's vehicle in a head-on collision. The impact was low in speed, but it was sufficient to force Plaintiff's body forward and back against the seat and restraint system. Plaintiff reported the collision to Defendant promptly and submitted the information Defendant requested. Plaintiff sought medical evaluation the same day and was diagnosed with cervical and lumbar strain. Defendant has not paid the benefits owed under the policy in an amount sufficient to cover Plaintiff's treatment and losses.

NEGLIGENCE

Defendant owed Plaintiff a contractual duty under the policy to investigate the claim in good faith, to pay covered benefits within the time required by Texas law, and to deal fairly with Plaintiff. Defendant breached these duties by delaying its investigation, failing to give a reasonable explanation for its position on the claim, and failing to pay benefits that were reasonably clear under the policy. Such conduct also violates the Texas Insurance Code, including the unfair settlement practice provisions, and entitles Plaintiff to recover statutory damages and attorney's fees.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff has suffered neck and back strain, physical pain, limitations on daily activities, medical expenses, lost time from work, and mental anguish. Plaintiff seeks actual damages, statutory damages, prejudgment and postjudgment interest, court costs, and reasonable attorney's fees. Plaintiff demands judgment against Defendant in the amount of $98,000.00, together with all other relief to which Plaintiff may be entitled.